

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

**MOTION FOR EXTENSION OF THE JUNE 13 DEADLINE FOR THE
LIMITED PURPOSE OF DEPOSING RESPONDENTS' WITNESS MICHAEL
HAAHR IN HIS INDIVIDUAL CAPACITY**

Complainant, Cool Living LLC (“Cool Living”), through its undersigned counsel, Holland & Knight LLP (the “Firm”), respectfully submits this Motion for Extension of the June 13 Deadline for the Limited Purpose of Deposing Respondent party witness, Michael Haahr Hansen, in his individual capacity (“Motion”).

Complainant makes this request following the status conference held on Friday, June 12, 2026 (the “Status Conference”). When the Presiding Officer advised that the depositions of Complainant witnesses Tony Hopkins and Anna Farkas would be ordered to be completed by July 13, 2026, Cool Living representative Mr. Hopkins inquired if depositions of ALPI witnesses would be permitted by July 13, 2026. The Presiding Officer advised that the discovery cutoff date of June

13, 2026, remains in place save the Cool Living depositions, but that when substitute counsel is appointed said counsel may well look to file a motion to extend the deadline in the event it can show good cause for the extension as the substitution of counsel is not in and of itself good cause for an extension.

Following the Status Conference, and to comply with the June 12, 2026 Order Following Status Conference (the “Order”), Complainant and undersigned counsel at the Firm conferred on Sunday June 14, 2026, and the details of that call are addressed in the footnote below for the purposes of showing strict compliance with the Presiding Officer’s Order.¹ Complainant and undersigned counsel also addressed the timing for substitute counsel as that impacts the defense of Complainant depositions and the basis of this Motion.

Cool Living represents that it is actively seeking substitute counsel but does not anticipate securing replacement counsel before the July 13, 2026 deadline. As such, undersigned counsel will be ready to defend the Complainant depositions, as mandated in the Order. But the unlikely retention of substitute counsel in the near term necessitates filing this Motion, and advising the Presiding Officer of the good cause grounds for allowing one fact deposition of Respondents.

Applicable Standards

This Motion is filed in compliance with 46 C.F.R. § 502.102, which allows motions for enlargement of time to “be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” Filings made less than 7 days before the scheduled deadline

¹ Following the Court’s Order, Cool Living and its undersigned counsel held a call on Sunday, June 14, 2026, to address blackout dates and the logistics for depositions. To meet the Order requiring that blackout dates be provided to ALPI “promptly”, following that call on June 14, 2026 undersigned counsel emailed ALPI with Cool Living’s blackout dates from June 15 to July 13, 2026, and addressed other logistics concerning the depositions. Separately, Cool Living requested ALPI not object to the limited extension for one ALPI deposition, and that matter is addressed in the meet and confer certification, *infra*.

“may be considered where reasonable grounds are found for the failure to meet this requirement.” Cool Living respectfully submits that both good cause and reasonable grounds are present here to support a limited extension of the June 13, 2026, deadline for the close of all discovery other than the depositions of Anna Farkas and Tony Hopkins to permit one additional deposition of ALPI witness, Mr. Haahr.

Argument

Reasonable grounds exist for the timing of this Motion in light of the ongoing withdrawal process of undersigned counsel and his Firm, balanced with Complainant Cool Living’s onboarding to representing itself as a party in this proceeding for the near term. The multi-week process of managing its counsel’s withdrawal and seeking substitute counsel impeded Cool Living’s ability to move forward with its own deposition strategy. The Firm provided notice to Cool Living of its intent to withdraw from this FMC proceeding on May 12 and 13, 2026, and Cool Living then commenced the search for new counsel by contacting potential substitute counsel. That process was ongoing (and remains ongoing) when counsels for the parties held a meet and confer on May 29, 2026, and the Firm filed its motion to withdraw on June 4, 2026. Moreover, when ALPI noticed the late-stage depositions of Anna Farkas and Tony Hopkins on June 5, 2026, Cool Living was required to focus on addressing the propriety of those notices, further limiting its ability to address its deposition position.

Cool Living acknowledges that its counsel and counsel for ALPI discussed the submission of a joint motion to extend the discovery deadlines by thirty days and that Cool Living did not authorize the extension. Cool Living was concerned with a broad extension of the discovery deadline and how that would impact costs and time as to the overall schedule. This explanation is provided to explain why reasonable grounds exist for filing this Motion less than seven days (and,

indeed after)² the June 13, 2026 discovery date. While after the June 13, 2026 discovery date, by only two business days, the Presiding Officer did contemplate a motion concerning discovery would possibly be filed in connection with substitute counsel. This Motion, in general terms, should be permitted procedurally having met the reasonable grounds standard so that the substantive basis, and whether good cause is met, can be assessed.

Turning to the good cause standard for this limited enlargement request, Cool Living respectfully submits good cause exists for several reasons:

(1) ALPI's Prior Position on Extension of the Discovery Deadline Was Agreeable:

ALPI was amenable to a without restriction one-month extension of discovery deadlines back on May 29, 2026, and expressed this fact in support of its opposition to Cool Living's Motion to Quash dated June 11, 2026 (Dkt. 26). As such, no prejudice exists for a very limited extension to permit one deposition of a witness employed by Respondents.

(2) Due Process and Support of the FMC Record: The deposition of Mr. Haahr is warranted for the same reasons identified by the Presiding Officer in support of extending the deadlines to permit the depositions of Anna Farkas and Tony Hopkins in the Order, which emphasized that "[d]ue process and the need for a fully developed record require" that key witnesses with relevant knowledge be deposed prior to briefing. Order at 2.

² Cool Living does not reference Section 502.102(b) as the applicable standard because there are no "late filings" to be accepted and no documents to be attached for filing. If the Court grants this Motion, Cool Living would serve a single Notice of Deposition on opposing counsel, which would not be filed with the Secretary under any circumstances. For the sake of good order, even if Section 502.102(b) applies to the instant Motion, Cool Living respectfully submits that the circumstances outlined in this Motion meet the standard of "exceptional circumstances... or as justice so requires." As discussed, *infra*, justice requires permitting the FMC to have a full and complete record of witness testimony from both parties, and this is a modest extension for one deposition where the Presiding Officer has permitted two additional depositions during the same period.

Mr. Haahr is a highly relevant fact witness, and due process necessitates his deposition in advance of briefing in this matter. He served as the primary point of contact for arranging the transportation of Cool Living's cargo and was centrally involved in the disputes concerning nonpayment of invoices and the withholding of cargo. Mr. Haahr was the first individual identified in ALPI's January 21, 2026 Initial Disclosures as possessing relevant knowledge and is referenced extensively throughout both parties' document productions. As ALPI's principal witness on these issues, his deposition is necessary to ensure a complete and fully developed evidentiary record.

(3) Narrow Relief and No Impact on Remaining Schedule: The extension request is narrow, reasonable, and will not disrupt the remaining case schedule. Cool Living seeks only to depose a single fact witness, Michael Haahr Hansen, ALPI's Director of Logistics and Chief Logistics Officer. The narrow extension requested for the purpose of deposing Mr. Haahr will not prejudice any other deadlines in the instant proceeding. Under the Presiding Officer's Order, the discovery deadline has been extended to July 13, 2026 for the purpose of completing the depositions of Ms. Farkas and Mr. Hopkins, which the parties are currently in the process of scheduling. Cool Living proposes that the deposition of Mr. Haahr be conducted within the July 13, 2026, timeline for the Cool Living depositions. By completing the Haahr deposition by July 13, it will not disturb the briefing deadlines that follow from August 13, 2026, onward.

(4) Fully Developed Record Aside from Depositions: All other discovery obligations have been completed by the June 13, 2026 discovery deadline, including the exchange of written discovery requests on March 11, 2026, service of responses on April 10, 2026, and document productions on April 30, 2026. Cool Living has produced 1,372 documents (10,251 pages), while

ALPI has produced 395 documents (2,058 pages³). With all other discovery obligations completed (as neither party addressed any other written discovery issues or points at the June 12, 2026 Status Conference) and only the depositions of Anna Farkas and Tony Hopkins remaining to be scheduled within the 30-day extension period, this single deposition will provide the Presiding Officer with a record where the parties are on equal grounds in having taken deposition testimony to address the allegations in Cool Living's Complaint and ALPI's affirmative defenses.

Meet and Confer

This Motion is made in compliance with the meet and confer requirements of 46 C.F.R. § 502.71. On June 14, 2026, counsel for Cool Living contacted counsel for ALPI to seek its position on the instant Motion, and addressed the good cause basis for allowing this very limited extension for one deposition. With no response by close of business on Monday, June 15, 2026, the undersigned emailed counsel for ALPI with the actual draft Motion for its further consideration, with a request for a response on the meet and confer by Tuesday, June 16, 2026, as Cool Living intends to file this day.

On the evening of June 15, 2026 counsel for ALPI advised that it does not consent to this Motion. ALPI did so advising *inter alia* that the Presiding Officer did not order further depositions at the June 12 Status Conference, that discovery is now closed, and inquiring as to the Firm's further role in the discovery process. Finally, ALPI specifically advised, "[f]or the avoidance of doubt, Respondents do not agree to Cool Living's proposed extension to take Mr. Haahr's deposition. The proposed motion seeks relief beyond what the Judge ordered. Respondents reserve all rights, including the right to oppose any such motion if filed." The Firm responded that it will

³ This ALPI production includes documents produced on Friday evening, following the June 12, 2026, Status Conference.

note the non-consent in the meet and confer certification, that it assisted Cool Living with this Motion, and that its role has no intention of expanding. Rather, Cool Living's representative, Mr. Tony Hopkins, is prepared to proceed with taking the deposition of Mr. Haahr should this Motion be granted⁴, as was noted in the draft Motion shared with ALPI.

Conclusion

This is Cool Living's first time proceeding before the Federal Maritime Commission. After the exchange of document discovery by April 30, 2026, the deposition phase was impacted by the Firm's withdrawal motion and Cool Living seeking substitute counsel in this proceeding and a parallel New York State action. This process takes time for substitute counsel, and is ongoing. So as to respect the Presiding Officer's schedule, after listening very carefully to her welcomed guidance and instructions at the Status Conference, Cool Living is seeking this relief swiftly (with the assistance of the Firm who agreed to prepare this Motion). Mr. Hopkins will be ready to take the deposition of Mr. Haahr on an agreed date with counsel for ALPI. Cool Living thanks Your Honor in advance for its consideration of this modest, limited extension request.

⁴ The FMC's Rules of Practice and Procedure at 46 C.F.R. § 502.21(a) permit a representative to take a deposition and state that "**A party... may testify, produce and examine witnesses.**" (emphasis added).

Respectfully Submitted,

Dated: June 16, 2026

HOLLAND & KNIGHT LLP

By: /s/ Chris Nolan

Christopher R. Nolan, Esq.
787 Seventh Avenue, 31st Floor
New York, NY 10019
Telephone: (212) 513-3200
chris.nolan@hklaw.com

Ashleigh T. Higgs
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
Telephone: (202) 955-3000
ashleigh.higgs@hklaw.com

Counsel to Complainant Cool Living LLC

/s/ Tony Hopkins

Tony Hopkins
Raunistulantie 43, 20300 Turku
+358 44 915 9319
tony@thatcooliving.com

Representative of Complainant Cool Living LLC

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document at the following email addresses:

Cool Living LLC

8 The Green, Suite R, Dover, Delaware 19901
Tony Hopkins email address (tony@thatcooliving.com)
Anna Farkas email address (anna@thatcooliving.com)

MILLER & MARTIN PLLC

Michael P. Kohler
1180 W. Peachtree Street NW, Suite 2100
Atlanta, Georgia 30309
Telephone: (404) 962-6100
Michael.Kohler@millermartin.com
Counsel for Respondents

MARTIN DAHLGAARD ATTORNEY P.C.

Daniel E.L. Bang
45 Main Street, Suite 29
Brooklyn, New York 11202
Telephone: (646-580-9880
delb@usadenmarklaw.com
Counsel for Respondents

Executed: June 16, 2026

/s/ Ashleigh T. Higgs